

Amendment No. 25 to HB6004

Pearson
Signature of Sponsor

AMEND Senate Bill No. 6001*

House Bill No. 6004

by deleting subdivision (2) in § 49-6-3502 of Section 2 and substituting:

(2) "Eligible student" means:

(A) A resident of this state who is entitled to attend a public school, except for a student enrolled in a home school, as defined in § 49-6-3050, or in a church-related school, as defined in § 49-50-801, with which the student's parent is associated, registered, or is participating as a parent-teacher for purposes of § 49-6-3050(a)(2) or (a)(3); and

(B) Is a member of a household with an annual income for the previous year that does not exceed thirty thousand dollars (\$30,000);

AND FURTHER AMEND by deleting § 49-6-3504 in Section 2 and substituting:

49-6-3504. Scholarship availability – prioritization of awards.

(a) For the 2025-2026 school year, the department shall award a maximum of twenty thousand (20,000) scholarships, to be awarded in the order in which the department receives completed scholarship applications.

(b) Beginning with the 2026-2027 school year, and subject to the funds appropriated for scholarships together with any available funds returned to the state treasurer pursuant to § 49-6-3506, if the number of applications received by the department during a program application period:

(1) Exceeds seventy-five percent (75%) of the total number of scholarships available for the respective school year, then the department may

increase the maximum number of scholarships available for the next school year by no more than five thousand (5,000) additional scholarships; or

(2) Does not exceed seventy-five percent (75%) of the total number of scholarships available for the respective school year, then the maximum number of scholarships available for the next school year must remain the same as the maximum number of scholarships available for the prior school year.

(c) Beginning with the 2026-2027 school year, if the number of applications received by the department exceeds the number of scholarships available for the respective school year, then the department shall award scholarships in the following order:

(1) An eligible student who received a scholarship in the immediately preceding school year;

(2) An eligible student who, at the time of submitting a completed application, is currently enrolled in a public school, or who is eligible to enroll in kindergarten in a public school for the respective school year, in the order in which the department receives completed scholarship applications; and

(3) An eligible student, in the order in which the department receives completed scholarship applications.

(d) In order to receive a scholarship under this part, an eligible student, or the eligible student's parent, must:

(1) Submit a completed scholarship application to the department;

(2) Ensure the provision of an education for the eligible student that satisfies the compulsory school attendance requirement provided in § 49-6-3001(c)(1) through enrollment in a private school; and

(3) Not enroll the eligible student in a kindergarten through grade twelve (K-12) public school in any school year for which the eligible student receives a scholarship.

(e) The department may award a scholarship to an eligible student in an order that does not comply with the order prescribed in subsection (a) or subsection (c), as applicable, if awarding the scholarship out of order is consistent with the outcome of an administrative appeal adjudicating the denial of the student's scholarship application.